

papers and has not made any showing that the responses to the Form Interrogatories served by Defendant were not substantially compliant with the applicable statutory requirements.

Accordingly, the Court finds that Defendant is entitled to relief from waiver of objections to the subject Form Interrogatories pursuant to Code of Civil Procedure section 2030.290.

Disposition

The Court further finds and orders as follows:

1. The Motion for Relief from Waiver is GRANTED.
2. **In light of the foregoing and in the exercise of the Court's inherent authority and discretion to control the proceedings pending before it, the parties are ordered to meet and confer regarding the Motion to Deem Admissions.** See Code Civ. Proc. § 2033.280(a) ("The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: [¶] (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230. [¶] (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect."); see also Code Civ. Proc. § 2033.280(c); CJER Civ. Pro.—Discovery, § 21.22 (a responding party's service, before the hearing on a "deemed admitted" motion, of substantially complaint responses, defeats a propounding party's attempt to have the requests for admissions deemed admitted).

13. 9:00 AM CASE NUMBER: L25-10974
CASE NAME: MICHAEL MCWHORTER VS. EF GOMEZ CEMENT CONTRACTOR INC,
HEARING IN RE: PTN RE: CCP 8480 FOR ORDER RELEASING REAL PRPTY FROM MECHANICS LIEN
FILED BY: MCWHORTER, MICHAEL C.
TENTATIVE RULING:

Petitioners Michael C. McWhorter and Jame D. McWhorter, as Trustees of the McWhorter Trust ("Petitioners") filed a Petition and Declaration under California Civil Code Section 8480 for Order Releasing Real Property from Mechanics Lien on September 15, 2025 (the "Petition"). That Petition was set for a hearing date of December 2, 2025.

A Proof of Service of Summons was filed on October 23, 2025 reflecting service of the Summons, Petition and related papers on October 22, 2025 on respondent EF Gomez Cement Contractor, Inc. ("Respondent").

Background

Petitioner's Petition seeks the release of a Mechanics' Lien recorded on the subject real property commonly known as 112 Amber Valley, Orinda, California (the "Subject Real Property") on or about April 29, 2025 (the "Mechanics' Lien") because Petitioner alleges that Respondent failed to bring an action to enforce the lien within 90 days after the

recordation of the claim of lien.

Analysis

The owner of property or the owner of any interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in Section 8460. Civ. Code § 8480. Such petition is set for hearing within thirty (30) days by the Court. *Id.* at § 8486(a).

The petitioner must serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing. *Id.* at § 8486(b). Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108. *Id.*

At the hearing both (1) the petition and (2) the issue of compliance with the service and date for hearing requirements of this article are deemed controverted by the claimant. *Id.* at § 8488(a). The petitioner has the initial burden of producing evidence on those matters. *Id.* The petitioner has the burden of proof as to the issue of compliance with the service and date for hearing requirements of the statute. *Id.* The claimant has the burden of proof as to the validity of the lien. *Id.*

If judgment is in favor of the petitioner, the court shall order the property released from the claim of lien. *Id.* at § 8488(b). The prevailing party is entitled to reasonable attorney's fees. *Id.* at § 8488(c).

Petitioners have not, at this stage, carried their burden to proffer evidence to establish a prima facie basis for Petitioner's entitlement to an order, pursuant to Pursuant to Civil Code sections 8480 and 8490, to release the subject real property from the claim of lien because the claimant has not commenced an action to enforce the lien within the statutory time period.

While this showing may be made by a verified petition, the subject Petition is not verified, in violation of Civil Code section 8484. See Civ. Code § 8484 ("A petition for a release order **shall be verified...**") (emphasis added). This lack of verification was not cured by tendering of a supporting declaration under penalty of perjury. Therefore, Petitioners have not carried their burden of production of evidence.

Nonetheless, it appears from a Supplemental Reply filed November 24, 2025 ("Supp. Reply") that a consensual Release of Mechanics Lien was tendered and recorded by Respondent since the filing of the pending Petition. This renders the Petition moot, except for the issue of attorneys' fees and costs.

Petitioners seek an award of attorneys' fees and costs in the total amount of \$2,482.50. See Supp. Reply, ¶¶2-4.

Because the Court is not finding in favor of the Petitioners on the Petition and entering judgment on the Petition in their favor, one might argue that Petitioners are not the prevailing parties pursuant to Civil Code section 8488. See Civ. Code § 8488(b) and (c).

Civil Code section 8488 is silent on whether a petitioner is entitled to attorneys' fees and costs in the case of a pre-judgment dismissal of the petition because the matter is mooted by the voluntary filing of a lien release by the respondent.

Generally, however, it is well established that a court may award statutory prevailing party attorneys' fees even when an action does not result in a favorable final judgment. *Graham v. DaimlerChrysler Corp.* (2004) 34 Cal.4th 553, 565 ("Our prior cases uniformly explain that an attorney fee award may be justified even when plaintiff's legal action does not result in a favorable final judgment."); see also *Winick Corp. v. Safeco Ins. Co.* (1986) 187 Cal.App.3d 1502, 1507 ("prevailing party" has been defined in many contexts to allow attorney fee awards even where there has been no decision on the merits.). This includes cases where a plaintiff's action has become moot because they effectively achieved the relief they sought. *Graham v. DaimlerChrysler Corp.*, supra, 34 Cal.4th at 565-566 (citing *Press v. Lucky Stores, Inc.* (1983) 34 Cal.3d 311).

The trial court, in its discretion, must pragmatically assess the litigation and determine whether or not a fee claimant has achieved its purposes in the litigation. See *Winick Corp. v. Safeco Ins. Co.*, supra, 187 Cal.App.3d 1502, 1507 (interpreting former Civil Code section 3250) (the courts have held that "the inquiry as to a party's success must be a pragmatic one that may range outside the merits of the underlying dispute," and that the "focus might well be on establishing the precise factual/legal condition that the fee claimant has sought to change or affect."); see also *Coltrain v. Shewalter* (1998) 66 Cal.App.4th 94, 107 (in determining prevailing party following voluntary dismissal of alleged SLAPP suit, "the critical issue is which party realized its objectives in the litigation).

The Court has considered and finds that Petitioners have achieved their purposes in the litigation by way of securing the voluntary lien release, notwithstanding the action having become moot as a result. Therefore, the Court finds that Petitioners are the prevailing parties entitled to recover attorneys' fees, as well as their costs.

The request for fees and costs is supported by the Supp. Reply. The Supp. Reply includes a summary of the legal services rendered and expenses incurred in the litigation of the matter. See Supp. Reply, ¶¶2-4. The Court has considered the 4.3 hours of legal work described and is familiar with the scope of the pleadings prepared and filed. The Court finds that the fees and costs incurred were reasonable given the nature and scope of the issues in the case.

Disposition

The Court finds and orders as follows:

1. The Petition is DENIED and the action DISMISSED as moot.
2. Petitioners to recover attorneys' fees in the amount of \$2,257.50 and costs in the amount of \$225.00, as against Defendant.
3. Petitioners to prepare a Judgment of Dismissal.